

9:00 A.M.

Calendar Line # 1

Case Name Sierra Lumber & Fence Co., Inc. vs Aldofina Gonzalez

Case No. 22CV392899

Motion for Award of Attorney's Fees and Costs

I. BACKGROUND

This case stems from a January 3, 2022, Complaint involving a breach of contract, general, and foreclosure of mechanic's liens. (Complaint). Plaintiff Sierra Lumber & Fence Company, Inc. ("Sierra") sought an entry of default judgment against Defendant Aldofina Gonzalez ("Gonzalez") on March 4, 2022. The Honorable Sunil Kulkarni entered default judgment on July 19, 2023 for Plaintiff and against the defendant in the amount of \$10,453.84, which comprised of \$6,791.00 in underlying damages; \$1,207.47 in attorney's fees; \$1,105.33 in costs; and \$1,350.05 in pre-judgment interest set at 18% per contract. (Default Judgment). On January 19, 2024, notice was filed that Pacific State Industries, Inc. ("Pacific") was assigned the judgment. (Notice of Assignment of Judgment). On March 22, 2024, the Honorable Socrates Manoukian authorized an enforcement of judgment and awarded post-judgment attorney's fees as well as \$1,000.00 to plaintiff's counsel.

Memorandum of costs were filed regarding attorney's fees and costs on March 25, 2024 and an amended memorandum of costs on April 12, 2024 seeking \$13,600.86 comprised of \$10,463.89 in attorney's fees and \$2,390.51 in costs for filing fee, postage, clerk's fee, recorder fees, copies, and process servers. Subsequent motions for an order turning over and authorizing the levy were filed and granted. On September 9, 2024, the Honorable Shella Deen authorized a notice of entry of judgment and ordered the debtor to serve code-compliant post-judgment interrogatories within fifteen days. Pacific then filed a motion for sanctions for the debtor's failure to comply with the court's September 9, 2024 order, and on December 12, 2024, Judge Deen authorized sanctions in the amount of \$2,035.00 against the debtor. On November 6, 2025, Judge Deen issued a \$1,500.00 bench warrant for the defendant's failure to appear for an order for examination ("OEX"). The warrant was issued on January 26, 2026. On June 4, 2026, Defendant appeared and was served with another OEX and was ordered to appear at the next court date.

Before the Court is Plaintiff Sierra Lumber & Fence Company, Inc.'s ("Sierra") motion for award of attorney's fees and costs arising from enforcing a judgment. On November 12, 2025, Plaintiff Sierra filed this motion and the motion was accompanied by a proof of service indicating mail and electronic service to Defendant Aldofina Gonzalez on that same day. On June 9, 2026, Plaintiff filed a second supplemental declaration in support of the amended motion for updated attorney's fees and cost, which was filed on June 16, 2026. The Declaration and motion was accompanied by a proofs of services indicating electronic mail service on the respective filing dates.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 10, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following: moving papers, including: notice of motion for attorney's fees and costs (totaling 3 pages); memorandum of points and authorities in support of the plaintiff's motion (totaling 6 pages); Declaration of Joseph P. Thompson in support of plaintiff's motion and attached Exhibits JJ-TT (totaling 72 pages); Supplemental Declaration of Thompson in support of the motion and attached Exhibits UU-WW (totaling 42 pages); Plaintiff's Amended Motion for attorney's fees and costs (totaling 5 pages); Declaration of

Thompson's Second Supplemental in support of plaintiff's motion and attached Exhibit XX (totaling 12 pages); proof of services (totaling 2 pages); and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 685.040, attorney's fees incurred in enforcing a judgment are included as costs collectible under this title if the underlying judgment includes an award of attorney's fees to the judgment creditor pursuant to subparagraph (A) of paragraph (10) of subdivision (a) of Section 1033.5.

Code of Civil Procedure section 685.080 provides the procedural requirements of a motion for post-judgment fees as follows:

- (a) The judgment creditor may claim costs authorized by Section 685.040 by noticed motion. The motion shall be made before the judgment is satisfied in full, but not later than two years after the costs have been incurred. The costs claimed under this section may include, but are not limited to, costs that may be claimed under Section 685.070 and costs incurred but not approved by the court or referee in a proceeding under Chapter 6 (commencing with Section 708.010) of Division 2.
- (b) The notice of motion shall describe the costs claimed, shall state their amount, and shall be supported by an affidavit of a person who has knowledge of the facts stating that to the person's best knowledge and belief the costs are correct, are reasonable and necessary, and have not been satisfied. The notice of motion shall be served on the judgment debtor. Service shall be made personally or by mail.
- (c) The court shall make an order allowing or disallowing the costs to the extent justified under the circumstances of the case.

Plaintiff seeks to recover both fees and sanctions under Code of Civil Procedure section 708.170, which the Court must issue absent "good cause" for failure to appear. Under section 708.710:

- (a) If an order requiring a person to appear for an examination under subdivision (e) of Section 708.110 was served by a sheriff, marshal, a person specially appointed by the court in the order, or a registered process server, and the person fails to appear:
 - (1) The court may do either of the following:
 - (A) Pursuant to a warrant, have the person brought before the court to answer for the failure to appear and may punish the person for contempt.
 - (B) Issue a warrant for the arrest of the person who failed to appear as required by the court order, pursuant to Section 1993.
 - (2) If the person's failure to appear is without good cause, the judgment creditor shall be awarded reasonable attorney's fees incurred in the examination proceeding. Attorney's fees awarded against the judgment debtor shall be added to and become part of the principal amount of the judgment.

If the underlying judgment includes an award of contract attorney fees, attorney fees incurred by the judgment creditor in enforcing the judgment are also recoverable as costs. (Code of Civ. Proc., §685.040; *Globalist Internet Technologies, Inc. v. Reda* (2008) 167 Cal.App.4th 1267, 1274).

III. ANALYSIS

Here, the underlying judgment was issued pursuant to a default judgment authorized by Judge Kulkarni on July 19, 2023 in the amount of \$10,453.84. Subsequently, motions to enforce the judgment and sanctions were ordered by Judge Manoukian on March 22, 2024 and sanctions were awarded in the amount of \$1,000.00. (Declaration of

Thompson, at p. 2). and Judge Deen on September 9, 2024 and on June 2, 2025, Judge Deen awarded sanctions in the amount of \$2,035.00. (*Id.*).Plaintiff asserts that the defendant has failed to comply with court orders and has failed to make any payments, and thus filed the noticed motion. (*Id.*).

Plaintiff is only entitled to collect the “reasonable and necessary costs” of enforcing a judgment, including attorneys’ fees. (Code of Civ. Proc., § 685.040). Plaintiff asserts that its judgment included an attorney’s fees clause as did the underlying judgment. (Plaintiff’s memorandum of points and authorities, p.2). It submits a declaration from its counsel and requests \$23,672.35 in attorney’s fees, comprised of 59.93 total hours at the hourly rate of \$395.00. It argues that since March 12, 2024 it had to engage in locating the defendant and prepare and file this motion to enforce that justify the additional imposition of fees. The last memorandum of costs was submitted on June 4, 2025 at the rate of \$2,390.51.

Plaintiff seeks to recover both fees and costs in the amount of \$23,672.35 (Amended Motion, p. 2) under Code of Civil Procedure section 708.170, for the defendant/debtor’s failure to obey the following Court orders from March 12, 2024 to November 11, 2025: “(1) Order Granting Motion to Compel Debtors to Answer Post-Judgment Interrogatories, etc., (“Order to Compel”) and (2) Order Granting Motion for Award of Sanctions Against Judgment Debtors (“Sanctions Order”), filed on 6-2-2025, nor has Debtor ALDOFINA GONZALEZ obeyed the Court’s Order for Appearance and Examination—Enforcement of Judgment (“OEX”), filed on 8-20-2025, copies of all three of which were personally served on ALDOFINA GONZALEZ on 8-28-2025.” (Plaintiff’s memorandum of points and authorities, p.2)(emphasis removed). Plaintiff asserts that the defendant’s failure to comply with “. . . Court’s orders reveal their bad faith litigation tactics, which cause Pacific States cost of litigation to increase unnecessarily. . .” as well as caused unnecessary consumption of time and judicial resources. (*Id.*) Plaintiff emphasizes that section 708.170(a) states that upon finding an examinee did not have good cause for failing to appear, the court must award judgment creditor’s reasonable attorney’s fees incurred in the examination proceedings. (*Id.*, at p. 4). The plaintiff sets forth efforts to meet-and-confer with the defendant in attempt to resolve the matter to no avail. (Declaration of Thompson, at p.3; Exhibits JJ, KK, LL, MM, NN, OO, PP, QQ, and RR).

No opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Rule of Court, Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The court finds that the Plaintiff incurred the fees and their efforts were reasonable and necessary for enforcing the judgment. The Court finds the hourly rate of \$395.00 as requested by the plaintiff reasonable. Upon review of the 59.93 hours, the court reduces 12.9 hours from March 12, 2024 through June 9, 2026 (Exhibits SS and TT) and that it sees a duplicative or administrative. Thus, the Court GRANTS attorney’s fees in the amount of \$21,736.85 for 47.03 hours at the hourly rate of \$395.00.

IV. CONCLUSION

Based on the foregoing, and the motion being unopposed, the Court GRANTS attorney’s fees in the amount of \$18,576.8585 for 47.03 hours at the hourly rate of \$395.00.

The Court will prepare the formal Order.

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Calendar Line # 3
Case Name Michelle Harper vs The Salvation Army
Case No. 25CV458778
Demurrer Before the court is defendant The Salvation Army’s demurrer to plaintiff Michelle Harper’s second amended complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> Plaintiff Michelle Harper (“Harper”) began working for defendant The Salvation Army (erroneously sued as The Salvation Army ARC San Jose; hereafter, “Salvation Army”) in or around July 2023 as a Sales Associate at defendant’s location in San Jose. (Second Amended Complaint (“SAC”), ¶9). Plaintiff Harper’s primary responsibility was stacking racks with donated clothing and ringing sales for which she earned \$18 per hour. (<i>Id.</i>). On or about December 31, 2023, plaintiff Harper began to feel symptoms associated with COVID-19 and later tested positive. (SAC, ¶10). Plaintiff Harper immediately notified the store manager, Richard, via text and he advised plaintiff Harper she would need to provide a negative test before she would be allowed to return to work. (<i>Id.</i>). Plaintiff Harper’s symptoms did not improve and after additional testing, plaintiff Harper was believed to have long-COVID which interfered with her major life activities. (SAC, ¶11). Plaintiff Harper’s physician recommended she perform “light duty” work. (SAC, ¶12). Plaintiff Harper provided defendant Salvation Army with a copy of her doctor’s note, but defendant Salvation Army failed to engage in any dialogue or take any steps to determine whether defendant Salvation Army could accommodate plaintiff Harper’s restrictions. Defendant Salvation Army put plaintiff Harper on leave through February 16, 2024. (SAC, ¶¶12 – 14). Plaintiff Harper submitted doctor’s notes extending her leave through March 1, 2024. (SAC, ¶15). However, on or about February 21, 2024, plaintiff Harper received paperwork letting her know her employment had been terminated with the stated reason that plaintiff Harper “failed to” provide a doctor’s note extending her leave beyond February 16, 2024. (SAC, ¶16). On February 13, 2025, plaintiff Harper filed a complaint against defendant Salvation Army. On April 14, 2025, defendant Salvation Army filed a demurrer and motion to strike a portion of plaintiff Harper’s complaint. On June 30, 2025, plaintiff Harper a FAC which asserted the following causes of action: (1) Unruh Civil Rights Act, California Civil Code §51 et seq. (2) Bane Civil Rights Act, California Civil Code §52.1 (3) California Disabled Persons Act, California Civil Code §54 et seq. (4) Wrongful Termination in Violation of Public Policy On August 4, 2025, plaintiff filed an amendment substituting The Salvation Army for Doe defendant number one. On August 8, 2025, defendant Salvation Army filed a demurrer to plaintiff Harper’s FAC. On September 9, 2025, the court issued an order sustaining, without leave to amend, defendant Salvation Army’s demurrer to the first through third causes of action of plaintiff’s FAC and sustaining, with leave to amend, defendant Salvation Army’s demurrer to the fourth cause of action of plaintiff’s FAC. On October 3, 2025, plaintiff Harper filed the now operative SAC which asserts a single cause of action for wrongful termination in violation of public policy.